Ohio Domestic Violence Network
ODVN

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House Judiciary Committee
Proponent Testimony for S.B. 174
May 20, 2026

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Chairman Thomas, Vice Chair Swearingen, Ranking Member Synenberg and members of the House Judiciary Committee:

My name is Lisa DeGeeter, and I am the Senior Director of Policy and Prevention for the Ohio Domestic Violence Network.

The Ohio Domestic Violence Network (ODVN) is Ohio's federally designated domestic violence coalition, representing 76 local domestic violence organizations throughout the state. In calendar year 2024, ODVN programs sheltered 10,834 survivors, including 4,483 children, and provided 127,006 survivors and their children with supportive services, including legal advocacy on civil issues such as divorce, custody, and safe parenting time.[1] Many of these survivors and their children were residing in a domestic violence shelter in an effort to keep themselves and their children safe during court proceedings.

Thank you for the opportunity to provide testimony in support of SB 174.

Domestic violence is present in a significant number of litigated custody cases. National research shows that about 90% of the cases are resolved without significant court intervention (mediation, custody evaluations, litigation).[2,3] In 2024, 81% of Ohio's divorces

[1] Available from ODVN_FactSheet_August2025.pdf and FatalityInfographic2025_web.pdf
[2] Court Statistics Project. Caseload Detail: Dissolution/Divorce. *Court Statistics Project*, Available from https://www.courtstatistics.org/csp-stat-nav-cards-second-row/csp-stat-domestic-relations.
[3] Ollendick, White & White, The Oxford Handbook of Clinical Child and Adolescent Psychology, 499 (2018).

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with children were resolved without significant court intervention.[4] Among the cases that are litigated, **approximately 60-75% involve reports of domestic violence**.[5]

Many survivors who seek help at ODVN member programs don't make police reports for a variety of reasons, including fear of reprisal or getting the offender in trouble, believing that police would not or could not do anything to help, and believing the crime to be a personal issue or too trivial to report.[6] In Ohio, over 100 people die every year due to domestic violence and in our most recent fatality report from July 1, 2024 – June 30, 2025 included 157 deaths, 55% of killers had a criminal history, 37% included felonies, 36% had a current or previous protection order, and 38% of fatal cases with minor children involved custody disputes. 92 Ohio children lost a parent and 76 lost a grandparent in an IPV homicide last fiscal year.[7]

Ohio's children deserve safety-focused legislation that keeps parents and courts focused on the best interests of children. Recently, the National Council of Juvenile and Family Court Judges released a model code on domestic and family violence. The council's approach promotes the best-interest-of-the-child analysis based on evidence related to the effects of domestic abuse, the current and future risk to the abused parent and the child, and the ability and willingness of the parent who is abusive to focus on the needs of the child without continued use of abusive tactics.[8]

From 1999 to 2001 I had the privilege of serving as the assistant director of the Ohio Task Force on Family Law and Children. The task force was a joint venture between the legislature, the Supreme Court, the governor's office, the State Bar Association, led by mental health professionals and academics. The group was tasked with examining Ohio's family law statutes and court processes and procedures, in order to draft recommendations to enhance

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[4] ODVN compared marriage terminations with children cases through the data provided by the State of Ohio Courts of Common Pleas, Domestic Relations Division. (2022). Available from Workbook: FormB-judge-state-PROD (ohio.gov)

[5] Peter G. Jaffe, Claire V. Crooks & Samantha E. Poisson, *Common Misconceptions in Addressing Domestic Violence in Child Custody Disputes*, 54 JUV. & FAM. CT. J. 57, 60 (2003) (75% of cases filed include domestic violence allegations)

[6] Ibid.

[7] Since the Covid epidemic began through 2021, Ohio domestic violence fatalities have increased substantially. See a complete compilation of ODVN's Annual Fatality Reports here: https://www.odvn.org/reports/FatalityInfographic2025_web.pdf

[8] Revised Chapter Four: Families and Children. Model Code on Domestic and Family Violence. (2022). Available from Revised-MC-Chapter-Four-Dec.-2022-FINAL.pdf.pdf (ncjfcj.org)

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the well-being of Ohio's children and families. The task force released a report, Minimizing Conflicts Maximizing Families. Chief Justice Moyer appreciated deliberative interdisciplinary processes, and he sent this task force report and a report created by a task force on guardians ad litem to the Advisory Committee on Children, Families and the Courts for review. They released a subsequent report that was entitled Report and Recommendations on Family Law Reform. S.B. 174 draws on 26 years of prior work, as detailed in the link provided below. S.B. 174 addresses all these concerns, and more, and ODVN enthusiastically supports its passage.

History

Family Court Feasibility Study conducted in 1996.
https://openlibrary.org/books/OL3584199M/Ohio_family_court_feasibility_study

Ohio Task Force on Family Law and Children (OTFFLC)1999-2001, (created by the 122nd General Assembly) Report was submitted to the Supreme Court of Ohio June 2001. Ohio Task Force on Family Law and Children

Advisory Committee on Children, Families and the Courts (ACCFC) Report and Recommendations on Family Law Reform. This group reviewed the OTFFLC report. Their report was submitted to the court in December 2005. Microsoft Word - FLC Report 2005.doc

Guardian ad Litem Task Force was created from the original task force, to look more deeply at GAL issues. Their report was also issued in 2005. Microsoft Word - GAL Task Force Final Report2.doc

Developmentally appropriate guidelines for parenting plans should be developed and available for use by all families and courts. Guidelines were created in 2012 and revised in 2026. Planning for Parenting Time: Ohio's Guide for Parents Living Apart

Non-adversarial dispute resolution processes should continue to be utilized once the family unit is restructured. *ACCFC unanimously agreed*. The Supreme Court's Dispute Resolution Section provides training and resources around Sup.R. 16 including advanced training for Family Mediation, Neutral Evaluation and Parenting Coordination. Dispute Resolution Education & Training » Supreme Court of Ohio

Counties should keep statistics about the number of parties who proceed pro se and this information should be included in The Ohio Courts Summary. Statistical Reporting Information and Forms » Supreme Court of Ohio